

# START HERE — Counsel Engagement Guide — Get Goods Gratis (Free)

⚠ **NOT LEGAL ADVICE.** The front door to this packet. It tells an attorney what the platform is, what order to read the documents in, and the open decisions that need sign-off — pulled together from the [COUNSEL] / [OWNER] brackets across every document. Everything here is inventor-prepared and pending professional review. Owner: **Ben Vick**. Intended web address: **getgoodsgratis.com**. Prepared 2026-09-13.

## 1. What this is (30 seconds)

**Get Goods Gratis (Free)** is an 18+ **retail / e-commerce marketplace** (website/PWA + iOS/Android apps) with a **closed-loop economy**: everyday users earn only non-cashable store credit ("Site Cash"); **real money flows only between the platform and businesses** (advertisers pay in; affiliates/developers/creators are paid out and 1099-reported). An AI layer generates/optimizes advertising and automates routine ops, with **permanent human gates on money, identity, and legal actions**. Full plain-language overview: `WEBSITE-SUMMARY-AND-DESCRIPTION.md`.

## 2. Reading order (the packet map)

1. **This document**, then the master compliance checklist `FOR-YOUR-ATTORNEY.md` and `LAWYER-CONVERSATION-GUIDE.md`.
2. **Product overview**: `WEBSITE-SUMMARY-AND-DESCRIPTION.md`.
3. **Consumer terms**: `TERMS-OF-SERVICE.md`, `EULA\`, `PRIVACY-POLICY.md`, `REFUND-POLICY.md`, `Policies\` (Acceptable Use + Accessibility), `COOKIE-AND-TRACKING-NOTICE.md`.
4. **Data**: `Data Collection\` (the data map) + `PRIVACY-LABELS-AND-DATA-SAFETY.md`.
5. **Money & compliance posture**: `PAYMENTS-ARCHITECTURE-AND-MERCHANT-BRIEF.md`, `TREASURY-SOLVENCY-AND-PAYPAL-SETTLEMENT.md`, `SITE-CASH-AND-OWNERSHIP.md`, the prize-competition items in `FOR-YOUR-ATTORNEY.md`, `COMPLIANCE-AND-ASSUMPTIONS.md`, `GLOBAL-COMPLIANCE-AND-LOCALIZATION.md`.
6. **Tax**: `Tax & Reporting\` (obligations brief + the 1099 pipeline).
7. **Counterparty contracts**: `Agreements\` (Partner/Affiliate/Developer + Advertiser).
8. **IP**: `Provisional Patent\` (draft the provisional first), `Trademarks\`.
9. **Global expansion**: `GLOBAL-LAUNCH-LEGAL-STRATEGY-BRIEF.md` + `COUNSEL-SHORTLIST.md`.

## 3. Open decisions register (sign-off needed)

### A. Blockers — decide first; most other docs depend on these

1. **Legal entity / "Licensor" identity + type + state of formation**. Referenced as [LICENSOR] in the EULA, ToS, both Agreements, and the patent assignment. **Form the entity before signing anything** (see §5).
2. **Governing law + arbitration vs. courts + class-action waiver** — must be **identical** across ToS, EULA, Partner Agreement, and Advertiser Agreement.
3. **Document precedence order** — app-store license terms > EULA (app) > ToS (service) > publisher EULA (third-party product); where the AUP fits.
4. **Closed-loop / money-transmitter posture** — confirm non-cashable Site Cash + business-only cash-out keeps the platform outside money-transmission / e-money / stored-value licensing (per launch market).
5. **Prize competition** — confirm the skill-based + AMOE-free-entry structure avoids a lottery/gambling characterization; state registration/bonding thresholds; jurisdiction gating. (Highest-variance item.)

### B. Tax (with a CPA / international-tax advisor) — see `Tax & Reporting\`

6. **Marketplace-facilitator characterization** (facilitator vs. reseller/conduit vs. retailer of record) — drives sales-tax collection.
7. **Sales-tax nexus + registration + a tax-calc engine**, and a **product-taxability map** (goods vs. software vs. games) by state.
8. **VAT/GST scope** — which non-US markets; whether to geo-restrict digital sales at launch; EU OSS/IOSS.
9. **1099 items** — filing provider, state filing/TIN-matching, 1099-K interplay per payout rail, TIN security at scale.
10. **Entity income-tax filings + revenue recognition** on prepaid advertising + **tax-reserve** cadence.

### C. Privacy / data — see `Data Collection\`

11. **Lawful basis per data category and market**; whether the **founding "collect everything" first-party** posture is adequately disclosed/consented.
12. **Sensitive data** — TIN security at scale; **voice recording** (two-party/wiretap consent + BIPA); **DOB / age-assurance** beyond self-attestation given the social/voice feature.
13. **DPIA** (profiling + AI + session screenshots); formalize a **RoPA**; **sub-processor DPAs**; **international transfer mechanism** (SCCs); **DSAR** response SLAs; **retention schedule** by category; **"do not sell/share"** adequacy; **breach-notification** plan.

### D. Contracts — see `Agreements\`

14. **Partner Agreement** — independent-contractor classification; clawback window; liability cap + indemnity; confirm **single-tier referral / no-MLM**; FTC endorsement-disclosure wording; developer **IP ownership** (work-for-hire vs. license) + open-source.
15. **Advertiser Agreement** — confirm **prepaid 52-week / 13-cycle, no auto-renew**; SCA/3-D Secure; the 30-day proportional-cancellation math (credit, not cash); Full-Value-Guarantee wording (value delivered, **never ROI**); right-to-reject + prohibited categories; allocation of advertiser-claim liability.

## E. Policies + IP + remaining

16. **AUP** — exact content standards (chat/voice/profiles); **CSAM/NCMEC** procedure; enforcement notice/appeals.
17. **Accessibility** — target standard (WCAG 2.1 AA) + which regimes (ADA/state/EAA); statement wording; audit scope + feedback SLA; vendor flow-down.
18. **IP filings** — provisional → **PCT** timing (within the priority year); **Madrid** trademark designations; trademark clearance.
19. **DMCA designated-agent registration** (Copyright Office) so the safe harbor attaches.
20. **Global** — lead-firm international-network capacity; per-market triage (clear / local-review / geo-restrict); EU/UK Article 27 representatives.

## 4. Fill-in-the-blanks (facts only the owner can supply)

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- **Legal entity name + type + state of formation** (feeds every [LICENSOR] ).
- **Business mailing address.**
- **DMCA designated agent** name + Copyright Office registration.
- **Governing-law state + venue.**
- **Effective dates / version numbers** for ToS, EULA, Privacy Policy.
- **Contact emails** — legal, privacy, accessibility, support.
- **Target launch-market list** (for the per-market triage).
- **1099 filing provider** selection (e.g., Track1099).
- **Insurance** coverages in place / to obtain (see §6).

## 5. Entity flag (do this first)

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Nearly every contract and the patent assignment reference a **legal entity that does not formally exist yet**. Forming it (LLC vs. S-corp vs. C-corp) is the foundation — decide it **with the attorney and CPA together**, since it drives both liability and tax, then flow the chosen name into every [LICENSOR] blank.

## 6. NDA + insurance flags

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- **NDA when interviewing firms.** A **retained** attorney owes you confidentiality automatically; a firm you are only **interviewing** does not. Before sharing the trade-secret-sensitive patent material ( Provisional Patent\PATENT-FEATURE-AND-FUNCTION-DISCLOSURE-BRIEF , and the "secret-sauce" specifics flagged in the provisional's §13), either get a short **mutual NDA** or withhold the sensitive specifics until you retain the firm.
- **Insurance.** Ask the attorney which coverages fit this model — **cyber / data-breach, technology E&O, media/advertising liability, and general liability** are the usual candidates for a data-collecting, ad-driven marketplace.

## 7. Suggested first-meeting agenda

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Bring §3.A (the five blockers) to the first call, confirm the entity/NDA posture (§5–§6), then let the attorney run the per-market triage from the global brief. The rest of §3 is worked through in priority order after the blockers are settled.

*Not legal advice. An inventor-prepared engagement guide; every item is pending review by licensed counsel (and a CPA / tax advisor where noted). Related: FOR-YOUR-ATTORNEY.md , GLOBAL-LAUNCH-LEGAL-STRATEGY-BRIEF.md , COUNSEL-SHORTLIST.md .*